

**COMBINED SYNOPSIS/SOLICITATION
TACTICAL GROUND MOBILITY (TGM)
ENHANCED DRIVING SKILLS (EDS)
COURSES OF INSTRUCTION
H9224026Q2003
02/18/2026**

1. DESCRIPTION: This is a combined synopsis/solicitation for commercial products or commercial services prepared in accordance with part 12. This announcement constitutes the only solicitation. Offers are being requested and a separate written solicitation will not be issued.

Solicitation number H9224026Q2003 is issued as a Request for Quotation (RFQ) for a Firm-Fixed-Price (FFP) Single-Award Indefinite Delivery Indefinite Quantity (IDIQ) Ordering Contract with a total capacity of \$5,000,000.00.

The services being procured are the personnel, management, materials, equipment, facilities, land, and vehicles (not otherwise provided by the Government) necessary to develop, manage, and instruct basic and advanced Tactical Ground Mobility (TGM) Enhanced Driving Skills (EDS) Courses of Instruction.

This acquisition is set-aside for small business concerns. This solicitation incorporates provisions and clauses by reference. The full text of provisions and clauses may be accessed electronically at www.acquisition.gov.

This is a 100% Small Business set aside. Only SBA certified Small Business or Small Business Joint Venture firms that are certified under the applicable North American Classification System (NAICS) code size standard listed below at time of quote submission are eligible for award. Small Business or Small Business Joint Venture SBA certification status will be verified at <https://search.certifications.sba.gov/?GoTo=Certs%>.

To receive attachments 1–5 listed in Section 7 of this combined synopsis/solicitation, interested firms shall submit a request via email to:

- jefferey.a.ball.civ@socom.mil.

The subject line of your email must follow this precise format:

- Subject: RFQ H9224026Q2003 - Request RFQ Attachments – [Your Firm’s Name]

The following information must be included in the body of your email:

- Unique Entity Identifier (UEI): Your firm’s UEI, issued by the Federal Government through SAM.gov.
- Point of Contact (POC): The full name, email address, and phone number of your designated point of contact

The associated NAICS code for this procurement is:

NAICS code	611692
Small Business Size Standard	\$10M

The solicitation document and anticipated contract award incorporates one or more clauses by reference, with the same force and effect as if it were given in full text. Upon request, the Contracting Officer will make the full text available. Also, the full text of a provision or clause may be accessed electronically at this address:

Federal Acquisition Regulation (FAR), Defense Federal Acquisition Regulation Supplement (DFARS), and United States Special Operations Command Federal Acquisition Regulation Supplement (SOFARS) clauses and provisions: <https://www.acquisition.gov>.

2. BASE CONTRACT CLIN STRUCTURE:

CLIN	Description	Total Potential Capacity
0001	Tactical Ground Mobility (TGM) Enhanced Driver Skills. Five (5) - One (1) Year Ordering Periods In Accordance With Base IDIQ Attachment 1 - Performance Work Statement (PWS), and Base IDIQ Attachment 2 - Price Spreadsheet Pricing Arrangement: Firm Fixed Price	\$5,000,000.00

ELIN Pricing. Responsible quoters shall submit their pricing in Attachment 2 – ELIN Pricing Sheet that is provided in this combined Synopsis/Solicitation. All pricing provided shall be inclusive of all requirements for execution under a Firm-Fixed-Price.

3. PERIOD OF PERFORMANCE AND PLACE OF PERFORMANCE:

Period of Performance: Five (5) One (1) Year Ordering Periods See Attachment 1 – Performance Work Statement. Specific period of performance to be determined at time of contract award.

Place of Performance is a contractor provided facility within the Contiguous United States – See Attachment 1 – Performance Work Statement

4. SOLICITATION PROVISIONS:

PROVISIONS INCORPORATED BY REFERENCE:

FAR	
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions (Sep 2024)
52.204-7	System for Award Management—Registration (Feb 2026)
52.209-7	Information Regarding Responsibility Matters (Feb 2026)
52.212-1	Instructions to Offerors—Commercial Products and Commercial Services (Feb 2026)
52.217-5	Evaluation of Options. (Feb 2026)
52.219-4	Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Feb 2026)
52.222-48	Exemption from Application of the Service Contract Labor Standards for Maintenance, Calibration, or Repair of Certain Equipment—Certification (Feb 2026)
52.222-52	Exemption from Application of the Service Contract Labor Standards for Certain Services-Certification (Feb 2026)
52.229-11	Tax on Certain Foreign Procurements—Notice and Representation (Jun 2020)
52.240-90	Security Prohibitions and Exclusions Representations and Certifications (Feb 2026)

DFARS	
252.203-7005	Representation Relating to Compensation of Former DoD Officials
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls
252.204-7016	Covered Defense Telecommunications Equipment or Services-Representation
252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation
252.204-7019	Notice of NIST SP 800-171 DoD Assessment Requirements
252.204-7024	Notice on the Use of the Supplier Performance Risk System
252.209-7021	Prohibition Relating to Conflicts of Interest in Consulting Services—Certification (Nov 2025)
252.219-7000	Advancing Small Business Growth
252.225-7000	Buy American—Balance of Payments Program Certificate
252.225-7020	Trade Agreements Certificate
252.225-7031	Secondary Arab Boycott of Israel
252.225-7035	Buy American—Free Trade Agreements— Balance of Payments Program Certificate
252.225-7050	Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism
252.225-7055	Representation Regarding Business Operations with the Maduro Regime
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region— Representation

PROVISIONS INCORPORATED BY FULL TEXT:

52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS. (FEB 2026)

(a) Definitions. As used in this provision—

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means—

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in—

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

ADDENDUM - 52.212-1 INSTRUCTIONS TO OFFERORS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES. (FEB 2026)

(f) Quote Preparation and Submission Instructions:

Interested parties are responsible for monitoring the <https://sam.gov> website regarding this solicitation.

1) The Government will make a best value tradeoff award decision. The Government will award all or none of the items indicated in Attachment 1, Performance Work Statement. The following factors will be evaluated:

(a) Technical Capability

(b) Price

Technical is more important than price.

- 2) Quote Format and Content. Quotes shall be submitted electronically and address the sections listed below. Individual emails may not exceed 10 MB. Submissions with .zip files are not acceptable and will not be delivered by the Government email server. The Government server does not generate rejection notices, and it may not forward a file if quarantined by the edge device. As such it is the vendor's responsibility to ensure its quote is received. Offerors may send multiple emails in submitting a complete quote. In submitting emails, Offerors shall identify the total number of emails and addendums associated with the full quote. Type shall not be less than 10 point font size.
- 3) Question Submission: All questions shall be submitted utilizing this Combined Synopsis/Solicitation Attachment 4 – Questions and Answers Excel Spreadsheet. Questions shall be emailed to the Contracting Officer and received **No Later Than (NLT) than 4:00 PM Eastern Daylight Time on 9 March 2026**, to allow adequate time to prepare and issue responses prior to the date and time set for receipt of quotes.
 - a) The email should cite "H9224026Q2003" in the subject line and be sent to the following email address: jefferey.a.ball.civ@socom.mil
 - b) Questions received after this date run the risk of not being answered.
 - c) Only written questions will receive a response. It is required that each question include the document name, specific page, paragraph, clause or other definitive citation for which the vendor is requesting clarification. See Attachment 4 – Questions and Answers
- 4) Quote Submission: All quotes shall be submitted **NLT 4:00 PM Eastern Daylight Time on 23 March 2026**. Quotes shall be emailed to: jefferey.a.ball.civ@socom.mil with the following in the subject line: QUOTE FOR H9224026Q2003.
- 5) **QUOTE VOLUMES:** Quotes shall contain the following separate volumes:
 - a) **(VOLUME 1) ADMINISTRATIVE INFORMATION:** Complete business address of the Offeror, the corporate name to be used on any resultant contract, and the remittance address if different from that above. If this name does not identify a "parent company" or sponsoring "corporation" name, also provide such identity, as appropriate.
 - i) The Quoter's Commercial and Government Entity (CAGE) Code and Unique Entity Identifier (UEI) Number.
 - ii) Name, telephone numbers and e-mail address of the person(s) to serve as the main point(s) of contact.
 - iii) Fill-In Clauses: Provide all fill-ins and representations and certifications required by the solicitation for inclusion in any resulting contract. The Quoter must be registered in the System for Award Management (SAM) and registration must be "Active" to be eligible for award. Quotes received without the completed copy of the provision at FAR 52.212-3 Alt I Deviation or completed SAM representation may be considered non-compliant.
 - iv) Provisions: Offerors shall also complete the provisions at:
 - (1) FAR 52.204-20 (if applicable)
 - (2) FAR 52.204-24 and 52.204-26
 - (3) SOFARS 5652.204-9004
 - v) Terms and Conditions: The Quoter must include a statement that it either –

- (1) agrees to the terms and conditions of this solicitation (which consists of the entire RFQ, including all documents, and attachments that are incorporated therein by reference and made a part thereof) and any solicitation amendments; or
 - (2) takes exceptions to any terms or conditions of the solicitation, and clearly identifies those exceptions. Quoters must clearly identify any exception to the solicitation terms and conditions and provide complete accompanying rationale. Exceptions to any of the terms and conditions of this RFQ will be considered by the Government and may render the quotation ineligible for award.
- b) **(VOLUME 2) FACTOR 1 – TECHNICAL CAPABILITY:** Submit a narrative response (max 10 pages, excluding resumes, certificates, licenses, proof of land rights, and vehicle ownership from the page limit) demonstrating your understanding and approach to meeting all the requirements in Attachment 1 – Performance Work Statement. The narrative must address the following:
- i) Provide details of your proposed training location(s) and the legal land rights your firm currently holds or plans to secure to conduct training as outlined in Attachment 1 - PWS. If applicable, include evidence of pending or established land rights, such as lease agreements, purchase agreements, titles, or deeds. All evidence must be verifiable legal documents.
 - ii) Explain how the proposed training location meets the requirements in Attachment 1 - PWS, including facilities, lodging for up to 17 personnel, terrain features, off-road areas, and environmental conditions. Include maps or illustrations to show suitability.
 - iii) List the Non-Standard Commercial Vehicles (NSCV) to be provided, explaining how they meet or exceed PWS requirements. Include details on maintenance, reliability, and availability relative to the contract award date. Provide photos, specifications, and proof of legal ownership or assurance of ownership (e.g., agreements or titles).
 - iv) Provide an outline of the proposed curriculum and objectives for the tactical ground mobility courses, including course structure, duration, topics, and training methods (e.g., classroom, hands-on, field exercises). Detail safety protocols that meet applicable requirements, identify potential risks (e.g., weather, vehicle issues, safety concerns), and explain how training effectiveness will be measured (e.g., evaluations, assessments, feedback). Ensure alignment with PWS requirements.
 - v) Provide detailed information demonstrating recent and recurring experience within the past three years in delivering similar services required by this RFQ. In accordance with the PWS, submit resumes, certifications, and licenses for instructor. Resumes should highlight qualifications, relevant and recent experience, and expertise in tailoring training to special operations forces objectives
- (1) **VOLUME 2 APPENDIX:** Resumes, Certificates, Licenses, Proof of Land Rights (or assurance of such rights by the time of contract award), Proof of Ownership of Vehicles.
- c) **(VOLUME 3) FACTOR 2 - PRICE:** Offerors shall provide a complete firm-fixed price quote using "Attachment 2 – ELIN Pricing Sheet." Pricing must be submitted for all Exhibit Line Item Numbers (ELINs) across all five ordering periods, as well as for the option to extend services up to six months described in FAR 52.217-8. The total evaluated price will consist of the sum of all priced ELINs in the 5 ordering periods and the priced option described in FAR 52.217-8. Partial quotes will not be evaluated. Prior to award, the Government may require additional "other than cost or pricing data."

(End of provision)

52.212-2 EVALUATION—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

Factor 1 - Technical Capability. The technical narrative and any associated attachments will be evaluated based on the degree to which they demonstrate the capability to successfully perform all the requirements in Attachment 1- Performance Work Statement. Specifically, the evaluation will focus on the technical capabilities associated with the proposed training location(s), vehicles, curriculum, safety, management, recent and recurring experience, and personnel qualifications/certifications/ licenses. Additional merit will be considered on quotes that demonstrate the firm's ability to conduct training immediately at time of contract award. To successfully demonstrate this ability, firm's must provide legal documentation proving they currently have the required land rights and vehicles or legal assurance that land rights and vehicles will be available at time of contract award.

During evaluation of each quote, the Government will assign the technical factor an overall rating as shown below.

Factor 1 Technical Capability Combined Technical/Risk Ratings	
Adjectival Rating	Description
Outstanding	Proposal indicates an exceptional approach and understanding of the requirements and contains multiple strengths, and risk of unsuccessful performance is low.
Good	Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength, and risk of unsuccessful performance is low to moderate.
Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.
Marginal	Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.
Unacceptable	Proposal does not meet requirements of the solicitation, and thus, contains one or more deficiencies, and/or risk of unsuccessful performance is unacceptable. Proposal is un-awardable.

Definitions

STRENGTH	Is an aspect of an offeror's proposal that has merit or exceeds specified performance or capability requirements in a way that will be advantageous to the Government during contract performance.
WEAKNESS	Means a flaw in the proposal that increases the risk of unsuccessful contract performance.
SIGNIFICANT WEAKNESS	Means a flaw that appreciably increases the risk of unsuccessful contract performance.
DEFICIENCY	Is a material failure of a proposal to meet a Government requirement or a combination of significant weaknesses in a proposal that increases the risk of unsuccessful contract performance to an unacceptable level.

Factor 2 – Price. In accordance with FAR 12.204(a) Price Reasonableness, the government will evaluate price quotes to determine that the proposed price is fair and reasonable. The Government will evaluate the price quote's Total Evaluated Price (TEP) for award purposes. TEP is the sum of all Exhibit Line Item Numbers (ELINs) including the total price for the six-month option to extend services under FAR 52.217-8. Attachment 2 ELIN

Price Sheet automatically formulates the TEP. Offerors are required to submit a complete, firm-fixed price for all ELINs listed in "Attachment 2 – ELIN Pricing Sheet," including the option period. Partial quotes will not be evaluated or considered for award.

Technical is more important than price.

(b) Options (if applicable). The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) Notice of award. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

252.204-7016 COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (DEC 2019)

(a) Definitions. As used in this provision, "covered defense telecommunications equipment or services" has the meaning provided in the clause 252.204-7018, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.

(b) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered defense telecommunications equipment or services".

(c) Representation. The Offeror represents that it ☐ does, ☐ does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(End of provision)

252.204-7025 NOTICE OF CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) Definitions. As used in this provision, "controlled unclassified information (CUI)," "current," "Cybersecurity Maturity Model Certification (CMMC) status," "Cybersecurity Maturity Model Certification unique identifier (CMMC UID)," "Federal contract information (FCI)", and "plan of action and milestones" have the meaning given in the Defense Federal Acquisition Regulation Supplement 252.204-7021, Contractor Compliance With the Cybersecurity Maturity Model Certification Level Requirements, clause of this solicitation.

(b)(1) Cybersecurity Maturity Model Certification (CMMC) level. The CMMC level required by this solicitation is: Level 2 (Self) [Contracting Officer insert: CMMC Level 1 (Self); CMMC Level 2 (Self); CMMC Level 2 (C3PAO); or CMMC Level 3 (DIBCAC)]. This CMMC level, or higher (see 32 CFR part 170), is required prior to award for each contractor information system that will process, store, or transmit Federal contract information (FCI) or controlled unclassified information (CUI) during performance of the contract.

(2) The Offeror will not be eligible for award of a contract, task order, or delivery order resulting from this solicitation if the Offeror does not have, for each of the contractor information systems that will process, store, or transmit FCI or CUI and that will be used in performance of a contract resulting from this solicitation-

(i) The current CMMC status entered in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) at the CMMC level required by paragraph (b)(1) of this provision; and

(ii) A current affirmation of continuous compliance with the security requirements identified at 32 CFR part 170 in SPRS.

(c) Plan of action and milestones. If the Offeror has a CMMC Status of Conditional, the Offeror shall successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(d) CMMC unique identifiers. The Offeror shall provide, in the proposal, the CMMC unique identifier(s) (CMMC UIDs) issued by SPRS for each contractor information system that will process, store, or transmit FCI or CUI during performance of a contract, task order, or delivery order resulting from this solicitation. The Offeror also shall update the list when new CMMC UIDs are generated in SPRS. The CMMC UIDs are provided in SPRS after the Offeror enters the results of self-assessment(s) for each such information system.

(End of provision)

5652.204-9004 FOREIGN PERSONS (2006) SECTION K

As prescribed in 5604.404-80 , insert the following clause,

In accordance with restrictions required by Executive Order 12470, the Arms Export Control Act (Title 22, USC) (Sec 275), the International Traffic in Arms Regulation (ITAR), or DoD Directive 5230.25, Withholding of Unclassified Technical Data from Public Disclosure, no foreign persons will be permitted to work on a contract without notifying the Contracting Officer. Provide the following information for all foreign persons **who will be working on the contract (or "X" here if there are no such individuals: _____):**

- (1) Full Name:
- (2) Date of Birth:
- (3) Place of Birth:
- (4) Nationality:
- (5) Social Security Number:
- (6) Visa Status:
- (7) Current Address:
- (8) If a Subcontractor, Subcontractor Name and Address:
- (9) Biographic data and/or resume

5. SOLICITATION CLAUSES:

CLAUSES INCORPORATED BY REFERENCE:

FAR	
52.203-03	Gratuities (Apr 1984)
52.203-6 with Alt I	Restrictions on Subcontractor Sales to the Government (Jun 2020)
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017)
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards. (Feb 2026)
52.204-13	System for Award Management—Maintenance (Feb 2026)

52.209-6	Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment (Feb 2026)
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters (Feb 2026)
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations (Feb 2026)
52.212-4	Contract Terms and Conditions-Commercial Products and Commercial Services. (Feb 2026)
52.219-6	Notice of Total Small Business Set-Aside (Feb 2026)
52.219-8	Utilization of Small Business Concerns (Feb 2026)
52.219-14	Limitations on Subcontracting (Feb 2026) 52.219-14(f)(1) - Contracting Officer Fill-In: <u>By the end of the performance period for each order issued under the contract.</u>
52.219-33	Nonmanufacturer Rule (Feb 2026)
52.222-3	Convict Labor (Feb 2026)
52.222-35	Equal Opportunity for Veterans (Feb 2026)
52.222-36	Equal Opportunity for Workers with Disabilities (Feb 2026)
52.222-37	Employment Reports on Veterans (Feb 2026)
52.222-40	Notification of Employee Rights Under the National Labor Relations Act (Feb 2026)
52.222-41	Service Contract Labor Standards (Feb 2026)
52.222-42	Statement of Equivalent Rates for Federal Hires (May 2014)
52.222-43	Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (Feb 2026)
52.222-50	Combating Trafficking in Persons (Feb 2026)
52.222-54	Employment Eligibility Verification (Feb 2026)
52.222-62	Paid Sick Leave Under Executive Order 13706 (Feb 2026)
52.223-11	Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (Feb 2026)
52.223-12	Maintenance Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners. (Feb 2026)
52.224-3	Privacy Training (Jan 2017)
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024)
52.229-12	Tax on Certain Foreign Procurements (Feb 2026)
52.232-33	Payment by Electronic Funds Transfer—System for Award Management (Oct 2018)
52.232-40	Providing Accelerated Payments to Small Business Subcontractors (Mar 2023)
52.233-3	Protest After Award (Feb 2026)
52.233-4	Applicable Law for Breach of Contract Claim (Feb 2026)
52.240-91	Security Prohibitions and Exclusions (Feb 2026)
52.240-93	Basic Safeguarding of Covered Contractor Information Systems (Feb 2026)
52.244-6	Subcontracts for Commercial Products and Commercial Services (Feb 2026)
DFARS	
252.201-7000	Contracting Officer's Representative.

252.203-7000	Requirements Relating to Compensation of Former DoD Officials.
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting.
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.
252.205-7000	Provision of Information to Cooperative Agreement Holders.
252.225-7012	Preference for Certain Domestic Commodities.
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.
252.226-7001	Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns.
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.
252.232-7010	Levies on Contract Payments.
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.
252.243-7002	Requests for Equitable Adjustment.
252.247-7023	Transportation of Supplies by Sea.

CLAUSES INCORPORATED BY FULL TEXT:

52.216-18 ORDERING (AUG 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from contract award date through contract expiration date [insert dates].

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when—

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either—

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

52.216-19 ORDER LIMITATIONS. ORDER LIMITATIONS (OCT 1995)

(a) Minimum order. When the Government requires supplies or services covered by this contract in an amount of less than \$1,000.00 [insert dollar figure or quantity], the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) Maximum order. The Contractor is not obligated to honor-

(1) Any order for a single item in excess of \$5,000,000.00 [insert dollar figure or quantity];

(2) Any order for a combination of items in excess of \$5,000,000.00 [insert dollar figure or quantity]; or

(3) A series of orders from the same ordering office within 30 days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (i.e., includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 3 days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

52.216-21 REQUIREMENTS (FEB 2026)

(a) This is a requirements contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies or services specified in the Schedule are estimates only and are not purchased by this contract. Except as this contract may otherwise provide, if the Government's requirements do not result in orders in the quantities described as "estimated" or "maximum" in the Schedule, that fact shall not constitute the basis for an equitable price adjustment.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. Subject to any limitations in the Order Limitations clause or elsewhere in this contract, the Contractor shall furnish to the Government all supplies or services specified in the Schedule and called for by orders issued in accordance with the Ordering clause. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(c) Except as this contract otherwise provides, the Government shall order from the Contractor all the supplies or services specified in the Schedule that are required to be purchased by the Government activity or activities specified in the Schedule.

(d) The Government is not required to purchase from the Contractor requirements in excess of any limit on total orders under this contract.

(e) If the Government urgently requires delivery of any quantity of an item before the earliest date that delivery may be specified under this contract, and if the Contractor will not accept an order providing for the accelerated delivery, the Government may acquire the urgently required goods or services from another source.

(f) Any order issued during the ordering period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's ordering period; provided, that the Contractor shall not be required to make any deliveries under this contract after 3 years from contract expiration date. [insert date].

52.216-22 INDEFINITE QUANTITY. INDEFINITE QUANTITY (FEB 2026)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the ordering period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order, which may include order options to be exercised after the ordering period of this contract but before the end of the period of performance of the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order, including options exercised, to the same extent as if the order were completed during the contract's ordering period; provided, that the Contractor shall not be required to make any deliveries under this contract after expiration of the associated period of performance listed under any task order issued under this contract. [insert date].

(End of clause)

52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within the contract's expiration date. [insert the period of time within which the Contracting Officer may exercise the option].

(End of clause)

52.219-14 LIMITATIONS ON SUBCONTRACTING (FEB 2026)

(a) This clause does not apply to the unrestricted portion of a partial set-aside.

(b) Definition. Similarly situated entity, as used in this clause, means a first-tier subcontractor, including an independent contractor, that—

(1) Has the same small business program status as that which qualified the prime contractor for the award (e.g., for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and

(2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.

(c) Applicability. This clause applies only to—

(1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(2) Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(3) Contracts that have been awarded on a sole-source basis in accordance with sections 19.105, 19.106, 19.107, and 19.108;

(4) Orders expected to exceed the simplified acquisition threshold and that are set aside for small business concerns under multiple-award contracts, as described in 8.4 and 16.5;

(5) Orders, regardless of dollar value, that are set aside in accordance with sections 19.105, 19.106, 19.107, and 19.108 under multiple-award contracts, as described in 8.4 and 16.5; and

(6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.

(d) Independent contractors. An independent contractor shall be considered a subcontractor.

(e) By submission of an offer and execution of a contract, the Contractor agrees that in performance of a contract assigned a North American Industry Classification System (NAICS) code for—

(1) Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract;

(2) Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;

(3) General construction, it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be exceeded; or

(4) Construction by special trade contractors, it will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded.

(f) The Contractor shall comply with the limitations on subcontracting as follows:

(1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause—

[Contracting Officer check as appropriate.]

☐ By the end of the base term of the contract and then by the end of each subsequent option period; or

☒ By the end of the performance period for each order issued under the contract.

(2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.

(g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.

(1) In a joint venture comprised of a small business protégé and its mentor approved by the Small Business Administration, the small business protégé shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protégé in the joint venture must be more than administrative functions.

(2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions.

(End of clause)

52.222-42 STATEMENT OF EQUIVALENT RATES FOR FEDERAL HIRES (MAY 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR Part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of [5 U.S.C.5341](#) or 5332.

This Statement is for Information Only: It is not a Wage Determination

Employee Class	Monetary Wage-Fringe Benefits
_____	_____
_____	_____
_____	_____

Employee Class	Monetary Wage-Fringe Benefits
_____	_____
_____	_____
_____	_____
_____	_____

(End of clause)

52.232-18 AVAILABILITY OF FUNDS (APR 1984)

Funds are not presently available for this contract. The Government's obligation under this contract is contingent upon the availability of appropriated funds from which payment for contract purposes can be made. No legal liability on the part of the Government for any payment may arise until funds are made available to the Contracting Officer for this contract and until the Contractor receives notice of such availability, to be confirmed in writing by the Contracting Officer.

(End of clause)

252.204-7021 CONTRACTOR COMPLIANCE WITH THE CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) Definitions. As used in this clause-

"Controlled unclassified information" means information the Government creates or possesses, or information an entity creates or possesses for or on behalf of the Government, that a law, regulation, or Governmentwide policy requires or permits an agency to handle using safeguarding or dissemination controls (32 CFR 2002.4(h)).

"Current" means-

(1) With regard to Conditional Cybersecurity Maturity Model Certification (CMMC) Status-

(i) Not older than 180 days for Conditional Level 2 (Self) assessments and Conditional Level 2 (certified third-party assessment organization (C3PAO)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance by an affirming official (see 32 CFR 170.4); and

(ii) Not older than 180 days for Conditional Level 3 (Defense Industrial Base Cybersecurity Assessment Center (DIBCAC)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance by an affirming official;

(2) With regard to Final CMMC Status-

(i) Not older than 1 year for Final Level 1 (Self), with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.15); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official;

(ii) Not older than 3 years for Final Level 2 (Self) assessments and Final Level 2 (C3PAO) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(iii) Not older than 3 years for Final Level 3 (DIBCAC) assessments, with

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(3) With regard to affirmation of continuous compliance (32 CFR 170.22), not older than 1 year with no changes in compliance with the requirements at 32 CFR part 170.

"Cybersecurity Maturity Model Certification (CMMC) status" means the result of meeting or exceeding the minimum required score for the corresponding assessment. The potential statuses are as follows:

(1) Final Level 1 (Self).

(2) Conditional Level 2 (Self).

(3) Final Level 2 (Self).

(4) Conditional Level 2 (C3PAO).

(5) Final Level 2 (C3PAO).

(6) Conditional Level 3 (DIBCAC).

(7) Final Level 3 (DIBCAC).

"Cybersecurity Maturity Model Certification unique identifier (CMMC UID)" means 10 alpha-numeric characters assigned to each CMMC assessment and reflected in the Supplier Performance Risk System (SPRS) for each contractor information system.

"Federal contract information (FCI)" means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government. It does not include information provided by the Government to the public, such as on public websites, or simple transactional information, such as information necessary to process payments.

"Plan of action and milestones" means a document that identifies tasks to be accomplished. It details resources required to accomplish the elements of the plan, any milestones in meeting the tasks, and scheduled completion dates for the milestones, as defined in National Institute of Standards and Technology Special Publication 800-115 (32 CFR 170.21).

(b) Framework. The Cybersecurity Maturity Model Certification (CMMC) is a framework for assessing a contractor's compliance with applicable information security protections (see 32 CFR part 170).

(c) Duplication. The CMMC assessments will not duplicate efforts from any other comparable DoD assessment, except for rare circumstances when a reassessment may be necessary, for example, when there are indications of issues with cybersecurity and/or compliance with CMMC requirements.

(d) Requirements. The Contractor shall-

(1)(i) Have and maintain for the duration of the contract a current CMMC status at the following CMMC level, or higher: Level 2 (Self) Contracting Officer insert: CMMC Level 1 (Self); CMMC Level 2 (Self); CMMC Level 2 (C3PAO); or CMMC Level 3 (DIBCAC) for all information systems used in performance of the contract, task order, or delivery order that process, store, or transmit FCI or CUI; and

(ii) Consult 32 CFR 170.23 related to the flowdown of the CMMC requirements, and flow down the correct CMMC level to subcontracts and other contractual instruments;

(2) Only process, store, or transmit FCI or CUI on contractor information systems that have a CMMC status at the CMMC level required in paragraph (d)(1) of this clause, or higher;

(3) Complete on an annual basis, and maintain as current, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required in paragraph (d)(1) of this clause in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) for each CMMC UID applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract;

(4) Ensure all subcontractors and suppliers complete prior to subcontract award, and maintain on an annual basis, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required for the subcontract or other contractual instrument for each of the subcontractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the subcontract; and

(5) If the Contractor has a CMMC Status of Conditional, successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(e) Reporting. The Contractor shall-

(1) Submit to the Contracting Officer-

(i) The CMMC UID(s) issued by SPRS for contractor information systems that will process, store, or transmit FCI or CUI during performance of the contract; and

(ii) Any changes in the CMMC UIDs generated in SPRS throughout the life of the contract, task order, or delivery order, if applicable;

(2) Enter into SPRS the results of a current self-assessment for each CMMC UID, not covered by a C3PAO assessment or DIBCAC assessment, applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract; and

(3) Complete in SPRS on an annual basis and maintain as current an affirmation of continuous compliance by the affirming official (see 32 CFR 170.4) for each self-assessment, C3PAO assessment, or DIBCAC assessment required under the contract in SPRS.

(f) Subcontracts. The Contractor shall-

(1) Insert the substance of this clause, including this paragraph (f) and excluding paragraph (e)(1), in subcontracts and other contractual instruments, including those for the acquisition of commercial products or commercial services, excluding commercially available off-the-shelf items, if the subcontract or other contractual instrument will contain a requirement to process, store, or transmit FCI or CUI; and

(2) Prior to awarding a subcontract or other contractual instrument, ensure that the subcontractor has a current CMMC certificate or current CMMC status at the CMMC level that is appropriate for the information that is being flowed down to the subcontractor based on the requirements at 32 CFR 170.23.

(End of clause)

252.232-7006 WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) Definitions. As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) WAWF access. To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) WAWF training. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) WAWF methods of document submission. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) WAWF payment instructions. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) Document type. The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

TBD at Task Order Level (Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

TBD at Task Order Level (Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

TBD at Task Order Level [Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

Field Name in WAWF	Data to be entered in WAWF
Pay Official DoDAAC	<u>TBD at Task Order Level</u>
Issue By DoDAAC	<u>TBD at Task Order Level</u>
Admin DoDAAC	<u>TBD at Task Order Level</u>

Inspect By DoDAAC	TBD at Task Order Level
Ship To Code	TBD at Task Order Level
Ship From Code	TBD at Task Order Level
Mark For Code	TBD at Task Order Level
Service Approver (DoDAAC)	TBD at Task Order Level
Service Acceptor (DoDAAC)	TBD at Task Order Level
Accept at Other DoDAAC	TBD at Task Order Level
LPO DoDAAC	TBD at Task Order Level
DCAA Auditor DoDAAC	TBD at Task Order Level
Other DoDAAC(s)	TBD at Task Order Level

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) Payment request. The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) Receiving report. The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) WAWF point of contact.

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

TBD at Task Order Level (Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

5652.233-9000 INDEPENDENT REVIEW OF AGENCY PROTEST DECISION (2018)

In accordance with FAR 33.103(d)(4), interested parties may request an independent review at one level above the contracting officer. The independent review is available as an appeal of the contracting officer's decision on an agency protest. Requests for an independent review shall be submitted to the Contracting Officer for coordination.

(End of clause)

5652.204-9003 DISCLOSURE OF UNCLASSIFIED INFORMATION (JULY 2023)

(a) The protection of sensitive but unclassified data reflecting Special Operations technologies, personnel, plans, and business associations requires due diligence on the part of those in possession of such information. The application of appropriate security measures to ensure the safekeeping of USSOCOM and company proprietary data, intellectual property, and personnel data is the responsibility of all parties who have access to such information. On September 21, 2001, the Department of Defense designated Headquarters US Special Operations Command (USSOCOM) a sensitive unit, as defined by Title 10 United States Code (USC)

Section 130b (10 USC 130b). See DoD Manual 5400.07, Freedom of Information Act Program, dated 25 January 2017 paragraph 5.2 c. (2)(a), In keeping with this designation, unclassified information related to USSOCOM military technology acquisitions managed by USSOCOM or any of its component commands, will be designated Controlled Unclassified Information (CUI). As such, the contractor hereby unequivocally agrees that it shall not release to anyone outside the Contractor's organization any unclassified information, regardless of medium (e.g., film, tape, document, contractor's external website, newspaper, magazine, journal, corporate annual report, email, text, conversation, social media, etc.), pertaining to any part of this contract or any program related to this contract, unless the Contracting Officer has given prior written approval. Furthermore, any release of information which associates USSOCOM, Special Operation Forces (SOF), or any component command with an acquisition program, contractor, or this contract is prohibited unless specifically authorized by the Contracting Officer.

(b) That contractor shall submit a written request for approval and shall identify the specific information to be released, the medium to be used, and the purpose for the release. The contractor shall submit the request to the Contracting Officer at least 60 days before the proposed date for release for approval. No release of any restricted information shall be made without specific written authorization by the Contracting Officer. The Contractor shall include a similar requirement to this clause in each subcontract under this contract to affect this requirement at each level of subcontracting. Subcontractors shall submit request for authorization to release through the prime contractor to the Contracting Officer.

(c) The Contractor further understands that Title 18 USC Section 701 specifically prohibits the use of the USSOCOM emblem or logo in any manner or medium (e.g., corporate website, marketing brochure, newspaper, magazine, etc.) unless authorized in writing by the Contracting Officer. A written request for use of the USSOCOM emblem or logo shall be submitted to Contracting Officer at least 60 days before proposed use. Forward any request to use the USSOCOM emblem or logo through the Contracting Officer.

(End of clause)

6. ORDERING PROCEDURES: When a requirement is identified the contracting officer will

7. ATTACHMENTS:

Attachment 1 - PWS TGM Enhanced Driving Skills

Attachment 2 - ELIN Pricing Spreadsheet

Attachment 3 - QASP

Attachment 4 - Questions and Answers

Attachment 5 - DoL Wage Determination